

IN THE HIGH COURT OF DELHI AT NEW DELHI

O.M.P.(COMM) 61 of 2027

Konkast Engineering & Construction Private Limited

... PETITIONER

VERSUS

Meridian Infra Projects Limited

... RESPONDENT

**PETITION UNDER SECTION 34 OF THE ARBITRATION AND
CONCILIATION ACT, 1996**

1. The Petitioner (Respondent in the arbitration) challenges the Arbitral Award dated 18.08.2026 in ARBITRATION CASE NO. ARB/114/2026 under Section 34 of the Arbitration and Conciliation Act, 1996.
2. GROUND A -- PATENT ILLEGALITY IN THE APPORTIONMENT OF DELAY. The Award apportioning 65% of the delay to the Petitioner (Annexure A-1) is contrary to the evidence on record, particularly the site diary entries showing continuing land-clearance issues into April 2025 (Annexure A-2), and is vitiated by patent illegality in that it disregards material evidence that was neither controverted in cross-examination nor otherwise discredited.
3. GROUND B -- FAILURE TO CONSIDER MATERIAL EVIDENCE ON THE COUNTERCLAIM. The Tribunal's dismissal of the counterclaim (Annexure A-1) disregards the corroborating site-diary entries and the contemporaneous Site Engineer's Memo, and amounts to a failure to consider material evidence going to the root of the counterclaim.
4. GROUND C -- PERVERSITY IN THE FINDING ON RA BILL NO. 7. The Tribunal's preference for the Claimant's certification register over the Petitioner's contemporaneous site measurement, without adequately dealing with the Petitioner's evidence on this point (Annexure A-1), renders the finding on Issue 1 perverse within the meaning of Section 34(2A) of the Act.
5. The Petitioner accordingly seeks that the Award be set aside in its entirety, or, in the alternative, to the extent of the findings on Issues 1, 2 and 4 respectively.

PRAYER

- a. Set aside the Arbitral Award dated 18.08.2026 in ARBITRATION CASE NO. ARB/114/2026;
- b. In the alternative, set aside the Award to the extent of the findings on Issues 1, 2 and 4;
- c. Pass such further orders as this Hon'ble Court deems fit.

VERIFICATION

I, Devika Sane, Director, verify that the contents of this petition are true and correct.

Verified at New Delhi on this the 2nd day of October, 2026.

For Konkast Engineering & Construction Private Limited
(Devika Sane, Director)

Ms. Anushka Sagar, Advocate for the Respondent
Enrolment No. DEL/5029/2015

ANNEXURES TO THE PETITION

Annexure	Description
A-1	Extract of the Arbitral Award (Issues 1, 2 and 4)
A-2	Extract of Site Diary Entries relied upon (March-April 2025)

ANNEXURE A-1 -- EXTRACT OF THE ARBITRAL AWARD (ISSUES 1, 2 AND 4)

4. ISSUE 1: Whether RA Bill No. 7 was certified for Rs. 89,40,000 as pleaded by the Claimant or Rs. 92,40,000 as pleaded by the Respondent. The Tribunal has examined the certification register maintained by the Claimant's Engineer-in-Charge, which is a contemporaneous record maintained in the ordinary course of contract administration and was proved through the testimony of Ms. Kohli. The Respondent's figure of Rs. 92,40,000 does not correspond to any contemporaneous certified record placed before the Tribunal, and the Respondent's witness was unable, in cross-examination, to identify the document or engineer by whom that figure was certified. The Tribunal accordingly accepts the Claimant's certification record and holds that RA Bill No. 7 was certified at Rs. 8,94,00,000.
5. ISSUE 2: Whether the delay in completion of the third substation is attributable to the Claimant or the Respondent. The Tribunal has considered the site diary entries in evidence, which record that site access for the third substation was substantially handed over to the Respondent by 05.03.2025 without any written objection raised at that time. However, the same diary also records continuing land-clearance formalities at the site into April 2025, corroborating the Respondent's contention of a residual impediment. On a preponderance of the evidence, the Tribunal finds that the delay is attributable in part to each party, and apportions 65% of the delay to the Respondent (on account of its own mobilisation taking approximately seven additional weeks beyond the residual land-clearance period) and 35% to the Claimant.
7. ISSUE 4: Whether the Respondent is entitled to the counterclaim of Rs. 68,00,000 for additional works. The Respondent's own case is that the additional works, including cable trenching beyond the contracted scope, were directed telephonically without any written variation order under Clause 13 of the Contract. No contemporaneous written instruction, site memorandum contemporaneous with the works, or measurement record corroborating the claimed scope and value was placed before the Tribunal. In the absence of any such record, the counterclaim is dismissed.

ANNEXURE A-2 -- EXTRACT OF SITE DIARY ENTRIES RELIED UPON

Date	Remarks
05.03.2025	Site access for third substation formally handed over to Contractor's team; no objection raised
17.03.2025	Contractor's mobilisation of heavy equipment yet to commence; land-clearance formalities at nor
29.03.2025	Land-clearance formalities at northern boundary continuing; Contractor's site strength remains
12.04.2025	Land-clearance substantially completed; Contractor commences excavation for the third substatio
26.04.2025	Unforeseen underground utility line discovered during excavation; additional trenching discusse